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Which bills will Gavin Newsom sign into new California laws?

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It's California's most diverse Legislature ever, and one-fourth of lawmakers are new. But some things never change: Legislators wait until the last days of the session to pass a lot of bills.

In the final push, they sent Gov. Gavin Newsom some significant legislation — to tax guns and ammunition, ban caste discrimination and decriminalize some psychedelic drugs. And before they finished nearly seven months of lawmaking late Sept. 14, legislators approved many more bills. Of the more than 2,600 introduced, the most in a decade, about 900 are on Newsom's desk.

He has until Oct. 14 to sign or veto the final batch. Last year, he vetoed 169, or about 14%, while signing 997, including some very significant ones. The Legislature can override vetoes, if the bill's backers can win two-thirds majorities in both the Assembly and Senate. But that doesn't happen often, and in recent decades almost never.

Some significant measures ought to be to Newsom's liking: He has become more assertive in pushing his priorities in the Legislature — climate change last year, infrastructure and mental health this year.

Here are some of the noteworthy bills that CalMatters reporters are tracking. Bookmark this page for updates.

 Consider gender identity in custody cases

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WHAT THE BILL WOULD DO

AB 957 would require judges to consider whether a parent affirms their child's gender identity in making custody and visitation decisions. The bill would not mandate that a court side with the parent who affirms the child's gender identity. Instead, it would be one of many factors — including whether a parent has a history of drug or alcohol abuse or domestic violence and how much contact a parent has had with the child — in determining what is best for the child's health, safety and welfare.

WHO SUPPORTS IT

The bill passed along party lines. Democrats argued that it would protect the rights of LGBTQ children in divorces, particularly when the parents don't agree on their child's gender identity. Supporters also point to studies that transgender children are at higher risk for depression and mental health crises and could be in danger if with a parent who doesn't accept their identity. Equality California, the state's most prominent LGBTQ advocacy group, co-sponsored the bill, which is also backed by the California chapter of the National Association of Social Workers.

WHO IS OPPOSED

Republicans argued that judges already have discretion to consider what the measure requires. Several parents' rights groups also object to the bill, arguing that it would force family courts to ignore a parent's objections to a child changing their gender identity. The California Family Council, which has led rallies at the state Capitol this session, targeted this bill and others as government deciding how parents raise their children.

WHY IT MATTERS

While not necessarily a sweeping change to family law, this bill is another front in the battle over transgender children, which is playing out in California's public schools. Assemblymember Lori Wilson, the bill's author whose son came out as transgender as a teenager, wiped away tears as she defended the measure during the final debate on Friday. She told colleagues that it does not "put the thumb on the scale" for a parent who affirms their child's gender identity — and certainly doesn't allow the state to take custody from a parent who doesn't. In July, she told CalMatters that her office received death threats over the bill when conservative political figures found out about it.

Newsom has been on the side of transgender students. Last year, he signed into law a bill designed to make California a refuge by shielding parents who travel from other states to access gender-affirming care and the doctors who provide it.

GOVERNOR'S CALL

Newsom announced Sept. 22 that he vetoed the bill, saying that while he appreciates "the passion and values that led the author to introduce this bill" and while he shares "a deep commitment to advancing the rights of transgender Californians," the executive and legislative branches should be careful about trying to dictate "in prescriptive terms that single out one characteristic" legal standards for the judicial branch.

"Other-minded elected officials, in California and other states, could very well use this strategy to diminish the civil rights of vulnerable communities," he added.

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 Support LGBTQ students

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By Carolyn Jones

WHAT THE BILLS WOULD DO

AB 5, by Assemblymember Rick Zbur, a Santa Monica Democrat, would require teachers to undergo an online, 1-hour training annually on how to support LGBTQ students. The training, which would be provided by the California Department of Education, would include information on clubs and other peer support groups, counseling services, anti-bullying and harassment policies, privacy and other topics. SB 760, proposed by Sen. Josh Newman, a Democrat from Fullerton, would require schools to have at least one gender-neutral bathroom, beginning in 2026. The bill would bring schools in line with California businesses and government offices, which the state has required to provide gender-neutral bathrooms since 2017.

WHO SUPPORTS THEM

Both bills have passed mostly along party lines in the Legislature. State Superintendent of Public Instruction Tony Thurmond, both major teachers' unions, Equality California and dozens of other progressive groups support the bills. "AB 5 will provide public school teachers and staff, who are on the front lines of supporting California students, with the training and support they need to better serve LGBTQ+ and all students," the California Teachers Association wrote. In support of SB 760, Thurmond wrote: "Schools should be a welcoming, safe place for all students — this includes access to bathrooms."

WHO IS OPPOSED

California Parents Union opposed AB 5, saying that teachers should focus more time on students' academic success, and that the bill infringes on the authority of local school boards. "Many of our members also believe that each district is different as it serves a unique population of students. Many of our members are concerned that mandated LGBTQ cultural competency training will take time from teachers to collaborate on instruction for academic excellence." There was no opposition to SB 760.

WHY IT MATTERS

The bills reinforce California's support for LGBTQ students, at a time when more conservative states are passing laws that limit options and resources for those students. In general, LGBTQ students are more likely to suffer from depression and anxiety, but positive school climates can help, according to research from the Trevor Project, an LGBTQ youth advocacy organization. The group found that LGBTQ students who found their schools to be welcoming and affirming were significantly less likely to attempt suicide. A survey by GLSEN, an LGBTQ youth research nonprofit, found that LGBTQ students who felt safe at school were more likely to attend regularly.

GOVERNOR'S CALL □

Newsom announced he signed these and other LGBTQ rights bills on Sept. 23, a day after he vetoed a high-profile bill for gender identity in child custody cases. "California is proud to have some of the most robust laws in the nation when it comes to protecting and supporting our LGBTQ+ community, and we're committed to the ongoing work to create safer, more inclusive spaces for all Californians," he said in a statement. "These measures will help protect vulnerable youth, promote acceptance, and create more supportive environments in our schools and communities."

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□ Regulate driverless trucks

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By Lynn La

WHAT THE BILL WOULD DO

AB 316 would put limits on big, self-driving trucks (specifically, vehicles with a "gross vehicle weight of 10,001 pounds or more"), including having a backup "human safety operator" inside the truck while it's in operation. The bill also requires manufacturers to submit a report to the Department of Motor Vehicles within 10 days of a collision resulting in death, injury or property damage, plus an annual report about any deactivation of an autonomous truck. The measure — authored by Democratic Assemblymembers Cecilia Aguiar-Curry of Davis and Laura Friedman of Burbank — also requires DMV to submit a report to the Legislature on driverless trucks by Jan. 1, 2029, or five years after testing begins.

WHO SUPPORTS IT

One of the most vocal supporters is the Teamsters trucker union, which says it wants to preserve jobs and protect public safety. "The public should not be treated as a lab rat for big corporations to test their technology," Randy Cammack, president of Teamsters Joint Council 42, said in a statement. The California Labor Federation and other unions also back the proposal.

WHO IS OPPOSED

Tech companies that want to limit regulation, such as Alphabet's Waymo and Tesla and multiple business groups are opposed. So is the DMV, which calls the bill "unnecessary" and says that criticism that it is not equipped to regulate autonomous vehicles are "unfounded."

Gov. Newsom, who as the former mayor of San Francisco has a long history with Big Tech, also opposes the bill, as first reported by Politico. "The bill fails to recognize that the federal government and nearly a dozen other states are moving forward with this technology. And many of those states are actively positioning themselves to lure away California-based companies and the investments and jobs they bring," the governor's Office of Business and Economic Development wrote to legislators.

WHY IT MATTERS

As big tech and automotive companies push to put more driverless vehicles on California roads, the bill is a bellwether: Will it preserve public safety and jobs? Or will it slow down innovative technology crucial to California's economy?

This battle already surfaced in August, after the California Public Utilities Commission agreed to allow more robotaxis to roam San Francisco's streets. Citing instances of robotaxis blocking traffic lanes and stalling emergency vehicles — even during a recent mass shooting — the decision was lambasted by the city's transit authority board, fire and police departments and board of supervisors. Now, this conflict has quickly reverberated to driverless commercial trucks, as legislators also try to wrestle away more regulatory powers from the DMV.

GOVERNOR'S CALL □

Newsom announced Sept. 22 he vetoed the bill, calling it "unnecessary for the regulation and oversight of heavy-duty autonomous vehicle technology in California, as existing law provides sufficient authority to create the appropriate regulatory framework."

He also said he's aware of the potential impact of the technology on workers, so is directing the Labor and Workforce Development Agency to "lead a stakeholder process next year to review and develop recommendations to mitigate the potential employment impact of testing and deployment of autonomous heavy-duty vehicles."

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□ End state travel ban

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By Alexei Koseff

WHAT THE BILL WOULD DO

Seven years after California prohibited publicly-funded travel to states with anti-LGBTQ laws, it may reverse course. SB 447 by Senate President Pro Tem Toni Atkins, a San Diego Democrat who is the first openly gay leader of the chamber, would repeal a travel ban that has proved largely ineffective, restricting Californians more than those it was intended to punish. In its place, the measure would create an advertising program to promote LGBTQ inclusion across the country.

WHO SUPPORTS IT

Many LGBTQ advocates, including leading civil rights organization Equality California, joined the effort, calling for a new direction focused on changing hearts and minds. California State University and its faculty union — whose academic researchers and student athletes turned to private donations to get around the travel restrictions — also backed the measure.

WHO IS OPPOSED

Though SB 447 faced no organized opposition, critics including Republican legislators argue it would be inappropriate to spend potentially millions of dollars annually trying to influence other states. Assemblymember Evan Low, the Cupertino Democrat behind the travel ban, did not vote to repeal it.

WHY IT MATTERS

Prompted by North Carolina's then-highly controversial move to require people to use only bathrooms corresponding with their sex at birth, California's travel ban eventually grew to encompass two dozen states — including Texas, Florida and Arizona — that exclude transgender girls from high school sports, limit access to transgender health care and allow adoption agencies to discriminate against same-sex couples. Dropping the ban would be a major concession that California's advocacy has been a futile counterweight in a political climate increasingly hostile to LGBTQ people.

GOVERNOR'S CALL □

Newsom quickly signed the bill on Sept. 13, a day after it landed on his desk. "In the face of a rising tide of anti-LGBTQ+ hate, this measure helps California's message of acceptance, equality and hope reach the places where it is most needed," he said in a statement.

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□ Clear up the ballot

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By Sameea Kamal

WHAT THE BILL WOULD DO

Assembly Bill 421 started out as an ambitious reform of procedures for a state referendum, put on the ballot to repeal a law passed by the Legislature and signed by the governor. The original version introduced by Assemblymember Isaac Bryan, a Culver City Democrat, included more rules for signature gathering and other provisions designed to hit back at industry groups that are increasingly going to the ballot box to block laws they don't like.

But in its final form, the bill aims to reduce confusion for voters — sometimes created intentionally. This bill requires the ballot title and summary to be posed as a question for voters: "Keep the law" or "overturn the law?" That would be followed by a summary of the law. It would also require the measure's top funders to be listed, and, starting in 2025, the names of top supporters and opponents.

WHO SUPPORTS IT

Unions and advocacy groups that fought for environmental and worker protection bills that industry groups are aiming to overturn through the referendum process: SEIU California, the California Teachers Association, the Northern California Recycling Association and the Center for Biological Diversity. The bill is also supported by the League of Women Voters of California and the Dolores Huerta Foundation.

WHO IS OPPOSED

Industry groups including the Agricultural Council of California, California Association of Realtors and the California Manufactures and Technology Association, as well as Chamber of Commerce groups from around the state.

WHY IT MATTERS

Last year, California passed laws creating a task force to oversee wages in the fast food industry and to ban new oil wells near schools and homes. Industry groups have qualified measures for the November 2024 ballot to kill the laws. Even if they lose, they at least delay their implementation.

Also last year, voters in a referendum upheld a state ban on flavored tobacco. Would more direct ballot language make a difference in the outcome of these measures? It's not clear.

While the bill makes changes to the direct democracy process, it doesn't change the state's Constitution, so does not have to go to the voters.

Another provision in the bill creates a process for proponents of a referendum to withdraw their measure from the ballot. It's already being used in a deal between labor and the fast food industry to pull a measure off the November 2024 ballot.

GOVERNOR'S CALL □

Newsom announced Sept. 8 he had signed the bill, without comment. Bryan did in a statement: "A confusing referendum process has made it too easy for concentrated special interests to silence and manipulate the voice of

voters in our communities, but with Governor Newsom's signature on AB 421 we are putting power back in the hands of the people."

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 Revise public access

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By Sameea Kamal

WHAT THE BILLS WOULD DO

AB 469 creates an ombudsperson's office to review state agencies' denials of public records requests. The Legislature would have to fund the office, and it would expire on Jan. 1, 2027, unless lawmakers extend it. After late amendments, the ombudsperson would be independent and appointed by the governor, not part of the state auditor's office. Another amendment removed the requirement that someone who requests records be reimbursed if the ombudsperson decides they were improperly denied. This is the third try for this measure, and the first time it reached the governor's desk.

SB 544 reinstates some flexibility for remote meetings for state boards and commissions started during the COVID-19 pandemic and in place until year's end. The bill removes requirements to notify the public of all teleconference locations, post agendas at each location and make those locations accessible to the public. Instead, boards would only be required to post the physical address for one site, and only one board member or staff member would have to be physically present at that site. The bill was amended to exclude advisory boards that don't have decision-making authorities. It sunsets in 2026.

WHO SUPPORTS THEM

AB 469 is supported by the California News Publishers Association, California Broadcasters Association and other press groups, as well as the California Association of Licensed Investigators and Howard Jarvis Taxpayers Association. The bill's author, Republican Assemblymember Vince Fong of Bakersfield, argues that state agencies deny public record requests for "irrelevant and inappropriate" reasons and that people have no right to appeal, other than costly lawsuits.

SB 544 is backed by the California Commission on Aging, which sponsored the bill, along with other state boards and commissions. Sen. John Laird, a Democrat from Santa Cruz who authored the bill, cites privacy concerns with posting the home addresses of those who serve on state boards and commissions. He also argues that remote meetings expand participation.

WHO IS OPPOSED

While not an official opponent of AB 469, the First Amendment Coalition says it is concerned that the bill allows, and even encourages, state agencies to appeal the ombudsperson's decisions and potentially drag people who requested the records into court.

SB 544 is opposed by the First Amendment Coalition, the California Newspaper Publishers Association and the American Chemistry Council, who say Californians should be able to address their government officials in person.

WHY THEY MATTER

Public and press access to elected officials and state bureaucrats narrowed dramatically during the pandemic and hasn't been fully restored.

These bills are a mixed bag: AB 469 would give reporters and average Joes and Jills a better chance of securing public records. But SB 544 concerns advocates, who say that relying on remote meetings allows public officials to skirt accountability.

GOVERNOR'S CALL □

Newsom announced on Sept. 22 that he had signed SB 544, without any comments. Laird issued a statement: "Senate Bill 544 is a significant step forward in modernizing the Bagley-Keene Act to embrace the power of technology by fostering equity and enhancing public engagement, while also preserving public access to the decision-making process."

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Decriminalize psychedelic drugs

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By Ana B. Ibarra

WHAT THE BILL WOULD DO

Senate Bill 58, by Sen. Scott Wiener, a San Francisco Democrat, would ensure that people are not arrested or penalized for using and possessing certain plant-based hallucinogens starting in 2025. The substances include psilocybin and psilocin, the psychoactive ingredient in hallucinogenic mushrooms; mescaline (except peyote); and dimethyltryptamine, or DMT. A fourth substance, ibogaine, was scratched from the bill in a final round of amendments. This bill applies only to people 21 and older and does not legalize the sale of psychedelics.

The bill takes a more incremental approach for supervised medical use of psychedelics. It would require the state's health agency to form a working group to make recommendations for governing the future therapeutic use of these substances.

WHO SUPPORTS IT

The bill is sponsored by a veterans' group, Heroic Hearts Project. Combat veterans and retired first responders have testified in support of the bill, sharing their "transformational" experiences using psychedelics to help relieve suicidal thoughts and PTSD symptoms.

WHO IS OPPOSED

Registered opposition is largely made up of law enforcement groups. Mothers who have lost a child to an adverse reaction after they ingested hallucinogens have also testified about their concerns during hearings. They've pushed for the bill to include more safeguards, arguing that while these substances may promise benefits for some people, they also come with risks.

WHY IT MATTERS

If Gov. Newsom signs this bill, California would join Colorado and Oregon in decriminalizing psychedelics. The current movement to make these substances mainstream is one attempt to help alleviate the ballooning mental health crisis. Growing research portrays the drugs as a promising tool in helping people heal from various mental illnesses, including depression and PTSD. But evidence is still limited and no psychedelic treatment has yet been approved by the U.S. Food and Drug Administration.

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Tax guns and ammo

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By Alexei Koseff

WHAT THE BILL WOULD DO

AB 28 by Assemblymember Jesse Gabriel, a Woodland Hills Democrat, would impose an 11% excise tax on retailers and manufacturers for sales of guns or ammunition. Modeled on a similar federal levy for wildlife conservation, the tax could bring in an estimated $160 million annually for violence intervention programs, school safety improvements and law enforcement efforts to confiscate guns from people who are prohibited from owning them.

WHO SUPPORTS IT

Facing a higher two-thirds threshold for approval, the measure received widespread backing from Democratic lawmakers who argue that it would provide an essential, steady stream of funding to further California's gun safety efforts. Gun control advocates, physicians and nurses groups, local elected officials and even some police departments also endorsed it.

WHO IS OPPOSED

Gun rights groups contend the tax will unfairly burden lawful owners of firearms, particularly sports shooters and hunters who frequently buy ammunition, because businesses will simply pass the cost on to customers. They have suggested they will sue to stop it. Their complaint was echoed by Republicans and some Democrats who spoke against the measure in the Legislature.

WHY IT MATTERS

Lawmakers unsuccessfully pursued sales or excise taxes on guns and ammunition half a dozen times over the past

decade, some of which never even got a hearing. Gabriel credited a changing political climate for finally pushing the policy through this session — including parents' anxiety over regular active shooter drills at schools and widespread anger over last year's U.S. Supreme Court ruling that tossed long-standing restrictions on carrying concealed weapons.

"The public is demanding this of us," Gabriel told CalMatters. "They are demanding that we have more solutions, that we protect their kids, to protect their communities."

Newsom, a vocal proponent of gun safety measures who has repeatedly discouraged legislators from pursuing new taxes in recent years, now must choose between two key governing principles.

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Ban book bans

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By Carolyn Jones

WHAT THE BILL WOULD DO

Proposed by Assemblymember Corey Jackson, a Democrat from Moreno Valley, AB 1078 would penalize school boards that ban books and other education materials based solely on the materials' inclusion of history related to Black, Latino, Asian, Native American, LGBTQ people and other groups. It would amend the existing education code, which requires teaching materials to include the experiences and perspectives of diverse racial, ethnic and LGBTQ groups in curriculum.

WHO SUPPORTS IT

Gov. Newsom and State Superintendent of Public Instruction Tony Thurmond have been vocal proponents of the bill, approved by the Legislature along party lines. The American Civil Liberties Union is also in favor, writing: "To achieve equity in our public schools requires that students of all genders, Black, Indigenous, Latine, and LGBTQ+ students, and members of other ethnic and cultural groups see themselves reflected and respected in libraries, curricula, and classroom discussions–in every class, every grade, every day."

WHO IS OPPOSED

The California School Boards Association is against, saying that California already has a lengthy public process for adopting curricula, and that this bill would further inflame tensions between the state and local school boards. The Orange County Board of Education wrote: "This is a heavy-handed policy that is completely unnecessary and detrimental to school operations and financial stability. School districts are perfectly capable of making these decisions and procuring books and instructional materials accordingly. Furthermore, the responsibility of deciding what curriculum to adopt and what curriculum and books to discard should remain with the local school boards who are accountable to the parents, and the voters who elected them, and who are most closely affected by these decisions."

WHY IT MATTERS

The bill would stand in contrast to moves in Florida and other states to ban books featuring the history and perspectives of diverse groups of people. It also comes amid escalating sparring between Newsom and Florida Gov. Rick DeSantis over "culture war" issues and other policies. In California, the bill would exert the state's power over local school boards, which have largely operated with autonomy.

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Ban caste discrimination

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By Sameea Kamal

WHAT THE BILL WOULD DO

SB 403 adds caste to the state's fair employment and housing law, and the education code, which currently prohibit discrimination based on race, gender and sexual orientation. Caste is a centuries-old social hierarchy system that, in countries including India and Nepal, has historically defined what jobs people can work or whether they can pursue education. The bill, which drew some vocal opposition, was amended to include caste as a subset of ancestry, which is already protected, instead of adding it as a separate category.

WHO SUPPORTS IT

Groups representing various South Asian communities, such as Equality Labs (which represents some Dalit Hindus, who are considered the lowest caste), Hindus for Caste Equity, the Jakarta Movement, the Sikh American Legal Defense and Education Fund, and the Alphabet Workers Union, as well as the California Employment Lawyers Association, California Environmental Voters and the California Labor Federation. Some activists say they are on a hunger strike until Newsom decides the bill's fate.

WHO IS OPPOSED

Dozens of Hindu community groups in California and beyond, including three Dalit advocacy groups. The split among the South Asian community spurred Democratic Assemblymembers Evan Low and Alex Lee, who both represent parts of the South Asian-heavy Silicon Valley, to call for a delay of the bill. But they later supported it.

WHY IT MATTERS

It is unclear whether caste discrimination is covered under state laws. Both supporters and opponents cite the state's investigation at Cisco, the San Jose-based networking and cloud management company. Opponents say the fact that the state can already look into allegations renders the bill unnecessary, while supporters say the case shows that caste discrimination is happening and must be addressed.

If signed by Newsom, California would be the first state in the U.S. with such a law. It could be particularly impactful for the tech industry, where Indian workers with bachelor's degrees made up 27% of tech workers in Santa Clara

and San Mateo counties in 2021. Guha Krishnamurthi, an associate professor of law at the University of Oklahoma who has studied the bill, told CalMatters that the bill serves an important educational purpose — making managers and HR departments more aware of the issue.

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Give jobless benefits to striking workers

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By Felicia Mello

WHAT THE BILL WOULD DO

California's hot labor summer helped inspire this last-minute effort to allow striking workers to collect unemployment benefits. Under SB 799, workers who have been on strike for at least two weeks could receive funds. New York and New Jersey have passed similar laws, but California now bars people who voluntarily leave work due to a "trade dispute" from getting unemployment benefits, which are funded by a payroll tax on businesses.

WHO SUPPORTS IT

The California Labor Federation says without the bill, employers can just wait out a strike, hoping financial desperation will cause workers to give up. A slew of unions support the legislation, including Unite Here, the Writers Guild of America West and the Screen Actors Guild – American Federation of Television and Radio Artists, whose members are still on strike against Hollywood studios and streaming services.

WHO IS OPPOSED

The California Chamber of Commerce says the bill risks raising taxes on all California employers, whether their employees are on strike or not. Also joining the opposition: employer groups representing small businesses, the restaurant industry, farms, banks, school administrators and more.

WHY IT MATTERS

More than 275,000 workers have gone on strike in California this year, according to Cornell University's Labor Action Tracker — though only about a dozen of those work stoppages lasted more than two weeks. Unemployment payments would boost the bank accounts of Hollywood screenwriters who have been striking since May, along with actors and hotel workers who walked out in July.

California's cost of living has skyrocketed in recent years due to inflation and a hot housing market, making it harder for strikers to pay bills. The legislation also comes as the state's Employment Development Department is struggling to fulfill its existing responsibilities and is still paying back the federal government for money it borrowed during the pandemic. The bill's author, Sen. Anthony Portantino, a Glendale Democrat, told the Los Angeles Times the state's unemployment fund could be bolstered by raising the amount of wages subject to payroll taxes from the current annual ceiling of $7,000.

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Reduce retaliation against workers

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By Alejandra Reyes-Velarde

WHAT THE BILL WOULD DO

SB 497 would mandate that the California Labor Commissioner's office and state courts assume employers are illegally retaliating if they take certain disciplinary actions against a worker who in the prior 90 days has made a wage claim or a complaint about unequal pay. Employers would be able to rebut the retaliation assumption by showing that there is a legitimate, non-retaliatory reason for the employee discipline.

WHO SUPPORTS IT

The California Coalition for Worker Power, Equal Rights Advocates, and the National Employment Law Project cosponsored the bill, saying in a statement: "A majority of California workers who report violations to their employer or the government experience retaliation. When workers are too afraid to speak up, wage theft, unequal pay, and workplace hazards are allowed to flourish, making our communities less safe and equitable."

WHO IS OPPOSED

A coalition of employer organizations, including the California Chamber of Commerce, oppose the bill, warning it could subject employers to frivolous claims. "Courts already take timing into account when evaluating a retaliation claim," the groups wrote in a statement, adding, "Creating a presumption simply allows claims to proceed that should not be moving forward, which wastes valuable court and litigant resources."

WHY IT MATTERS

Labor activists said retaliation claims are rising as workers gain the courage to speak up about negative workplace conditions, but fear often keeps workers from filing claims. Retaliation complaints awaiting investigation by the state Labor Commissioner's Office have swelled almost five-fold from 2018 through 2021. By April 2023, the waitlist hit 4,878 claims.

In 2021, just 9 out of 237 completed cases were decided in a worker's favor. The rest were dismissed for lack of evidence.

"California has some of the strongest workplace and equal pay protections in the country," said Assemblymember Ash Kalra, the San Jose Democrat who presented the bill on behalf of Sen. Lola Smallwood-Cuevas, the Los Angeles Democrat who authored it. "However, our strong workplace protections are meaningless if workers are too afraid to speak up when their rights are violated."

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Clear the way for more housing

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By Ben Christopher

WHAT THE BILLS WOULD DO

SB 423 and SB 4 — both authored by San Francisco Democrat and human housing bill factory Sen. Scott Wiener — take aim at California's dire housing shortage by making it easier to build.

SB 423, the most closely watched housing bill of the year, renews Wiener's 2017 law that forces local governments to automatically greenlight apartments and other dense urban housing projects, so long as developers set a certain share of the units aside for lower income residents and abide by more stringent and costly labor standards. That means no lengthy environmental reviews or noisy city council meetings. This year's version tweaks the formula slightly by relaxing some of the labor standards and nixing a prior exemption for many coastal neighborhoods.

SB 4, dubbed the "Yes in God's Backyard" bill, would clear the way for churches, synagogues, mosques and other houses of worship, along with nonprofit colleges, to build designated affordable housing on their properties without having to conduct environmental reviews, receive approval from local governments or request changes to zoning.

WHO SUPPORTS THEM

Though the coalitions supporting both bills aren't identical, housing developers, "Yes in My Backyard" activists, affordable housing advocates and some of the state's biggest labor unions have lined up behind both. Arguably the most politically significant backer has been the state's unionized carpenters, who have emerged over the last two years as one of the most well-organized interest groups in support of more housing construction and whose support has given many labor-friendly Democrats tacit permission to break with less enthusiastic organized labor groups.

WHO IS OPPOSED

Many local governments, building trade unions and environmental activists have lined up against bills, but for different reasons. Local governments and other champions of local control over land use are rarely fans of state laws that usurp their decision-making authority. Many construction union groups are still angry that Wiener — arguing that the prior rules made it prohibitively expensive to actually build anything — watered down some of the hiring standards in SB 423. And some conservation groups are opposed to that bill for its failure to exempt the state's entire coastline. Environmental activists for lower income communities removed their opposition from SB 4 after it was amended to exempt areas around oil and gas wells and other heavy industry facilities.

WHY THEY MATTER

The law that SB 423 would re-up was used to fast-track the approval of more than 18,000 units in its first four years, according to a UC Berkeley Terner Center analysis. The Terner Center also calculated that SB 4 would open up tens of thousands of acres of land for ready-to-go affordable housing construction. These are both meaningful increases in housing supply, though a far cry from the state's goal of 315,000 per year.

More dramatic is the political upheaval that these two bills represent. When Wiener was elected to the Legislature in 2016, the argument that the state should play an aggressive role in removing obstacles to more housing construction, even over the objections of local governments, was a political lightning rod. Now it's almost taken for granted. SB 423 passed with overwhelming support in both houses. The margins on SB 4, two versions of which failed in prior years, were even higher. Particularly with the rise of the carpenters' union as a pro-housing force, the lobbying bloc in support of building more housing has become as formidable as any in the Capitol.

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Strengthen renters' rights

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By Alejandra Reyes-Velarde

WHAT THE BILLS WOULD DO

AB 12, by San Francisco Democratic Assemblymember Matt Haney, limits the amount that landlords can require in security deposits to one month's rent, rather than the previous two months' rent. The bill aims to make securing housing more attainable for California renters, who often have to save up thousands of dollars to rent a home.

AB 1418, by Inglewood Democratic Assemblymember Tina McKinnor, prohibits cities and counties from enacting "crime-free" housing programs and nuisance ordinances that require landlords to evict people when a household member is a convicted felon.

WHO SUPPORTS THE BILLS

Supporters of AB 12 include tenant advocacy groups and union leaders, such as Tenants Together and the California Labor Federation. They say that working Californians are struggling to keep up with the high cost of living, and that high security deposits are exacerbating the homelessness crisis.

Supporters of AB 1418 include housing rights groups and criminal justice groups, including the National Housing Law Project and Root & Rebound. They say the bill will put an end to a practice that disproportionately impacts Black and Latino households and makes it more difficult for them to find and remain in affordable housing.

WHO IS OPPOSED

Opponents of AB 12 include associations representing landlords, developers and business interests, including the California Apartment Association and the California Rental Housing Association. They say without being able to collect enough in security deposits to cover potential damages, more rental property providers may decide to leave the market and further diminish the housing supply.

There is no opposition listed for AB 1418.

WHY THEY MATTER

Housing is a top priority for Californians and legislators as homelessness continues to grow. These bills would allow California renters to more easily find housing or to stay in their homes.

These bills also are evidence that renters' influence in the state Capitol is growing in the ongoing battle with landlords and real estate interests.

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Sort out water rights

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By Rachel Becker

WHAT THE BILL WOULD DO

SB 389, by Sen. Ben Allen, a Democrat from Redondo Beach, spells out the state's powers to investigate even the longest-standing claims to water from California's rivers and streams. Under the state's byzantine, Gold Rush-era water rights system, so-called "senior water rights" holders — those who have claims to water flowing past their property or that pre-date a 1914 law — use about a third of the surface water supply. They are not required to have permits or licenses, and the state's power to investigate them has been murky.

This bill would authorize the State Water Board to investigate and seek verification of these water rights claims, as well as ask for information about water use. It also spells out that the board can take action against unauthorized water users under its existing authority.

WHO SUPPORTS IT

The bill's sponsor is the Planning and Conservation League, a nonprofit environmental lobbying organization. The group last year published a report from a panel of water experts who recommended a slew of changes to the state's water rights system. Other supporters listed as of Sept. 9 include Sierra Club California, the Union of Concerned Scientists, Trout Unlimited, the Pacific Coast Federation of Fishermen's Associations and the Karuk Tribe.

WHO IS OPPOSED

The bill initially faced a long list of opponents, including water providers, builders, business interests, irrigation districts and agricultural groups, who said that the bill would "strip claimants of their rights with little due process."

But the bill was amended to clarify due process requirements, drop a reference to forfeiting water rights and add a requirement that the board explain its requests for information. By the time the bill reached the Assembly floor, a coalition of opponents, including the powerful Association of California Water Agencies, the California Farm Bureau and the California Chamber of Commerce, shifted to neutral.

WHY IT MATTERS

The year started out with three major bills taking aim at reforming California's water rights system, which has been roundly criticized for its exclusion of Native peoples and people of color and for promising more water than is available. A standoff over the Shasta River, where local ranchers diverted water in violation of state orders and faced a fine of roughly $50 each, publicly demonstrated the state's limited powers to enforce its priority system.

Of the three bills, Allen's bill is the only survivor, although the others may be revived next year.

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Boost clean energy

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By Julie Cart

WHAT THE BILL WOULD DO

AB 1373 would give the state Department of Water Resources the authority to procure clean power when needed — offshore wind, geothermal and long duration storage in particular — under the direction of the Public Utilities Commission. It directs the Legislature to allocate $6 million to conduct monitoring and research into potential impacts of floating offshore wind projects. The bill — authored by Assemblymembers Eduardo Garcia and Phil Ting and Sen. Josh Becker — also gives the department the right to issue bonds to pay for the cost of buying the new power.

WHO SUPPORTS IT

A mix of environmental and clean energy groups say that supporting nascent green-energy technology will hasten California's ability to reach its renewable energy goals. Construction trades and unions support the development, which is expected to create new jobs in especially hard-hit parts of the state, as does the statewide association of port authorities, where extensive expansion will be required to stand up the new wind industry.

WHO IS OPPOSED

Various energy producers, local utilities, cities and counties argue that the bill gives the Utilities Commission authority over local community choice power providers. Other groups say that the state entering competitive energy markets is likely to be disruptive and may raise utility costs for ratepayers.

WHY IT MATTERS

The bill is intended as a shot in the arm to the floating offshore wind industry, which is still in its infancy in California and faces high development costs and financial risk. Wind companies, which hold offshore leases in federal and state waters, have been asking for assurance from state officials that there will be a market for their renewable power when the projects get up and running. The industry says that making the state a customer for the future power source will give investors confidence to help build the projects.

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Add paid sick days

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By Sameea Kamal

WHAT THE BILL WOULD DO

SB 616, authored by Long Beach Democrat Lena Gonzalez, increases the number of paid sick days employers must provide to workers from three to five, starting in 2024. Proponents originally sought seven days, but it was reduced in the appropriations suspense file. The bill also extends protections against retaliation to workers who are in a union, but excludes provisions that would have granted railroad employees access to unpaid sick leave.

WHO SUPPORTS IT

Advocacy groups for families and women and dozens of unions. The California Work & Family Coalition calls the bill "a commonsense change…ensuring that California workers do not have to choose between their health and paying the bills." The California Budget & Policy Center points out that the state's sick leave is less generous than in several other states. The bill is one of several measures this session aimed at improving work-life balance.

WHO IS OPPOSED

Trade associations representing various industries such as the California Grocers Association and California Hotel & Lodging Association, as well as chamber of commerce groups throughout the state. They argue that many small businesses have not recovered from the pandemic and are now dealing with inflation. The California Chamber of Commerce has the bill on its "job killer" list and is urging the governor to veto it.

WHY IT MATTERS

There's no federal law that requires employers to give workers paid sick leave. California became the second state in the nation to adopt a paid sick leave policy in 2014, but now provides less time than 15 states and many of its own cities., including San Diego, Los Angeles, San Francisco, Oakland and Berkeley.

This isn't the first time an expansion has been introduced, but the COVID-19 pandemic amplified the need for more paid sick days. In March 2021, a new law required larger employers to provide as many as 10 more days for quarantines or vaccine side effects. But that benefit went away, along with federal tax credits that paid for it, six months later.

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Increase pay for health care workers

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By Ana B. Ibarra

WHAT THE BILL WOULD DO

SB 525 by Sen. María Elena Durazo, a Los Angeles Democrat, would raise the minimum wage for California's lowest paid health workers to $25 an hour. This raise would apply to employees such as nursing assistants, medical techs and janitorial workers. The pay boost would be phased in over the next several years. How soon employees would see the $25 hourly rate depends on the type of health facility they work in. Workers at dialysis clinics and large health systems, for example, would reach $25 by 2026, while employees at rural hospitals would have to wait 10 years for the same rate.

WHO SUPPORTS IT

The bill is sponsored by SEIU California. After much negotiation and amendments, the union reached an agreement with health care employers, which initially opposed the bill. Now hospitals and clinics are also in support. In exchange, the union agreed to a 10-year moratorium on local measures that aim to increase compensation for medical workers. Also, for four years, the union will not take any dialysis-related measures to the ballot.

WHO IS OPPOSED

The Valley Industry & Commerce Association, a business advocacy group in Los Angeles County, remained in opposition even after amendments. The group argues that it is "unfair" to push for raises based on type of employment. The bill "does not uplift or promote greater economic security for our state," the group wrote.

WHY IT MATTERS

The wage hike is expected to benefit an estimated 469,000 employees, including people who make slightly more than $25 but who would likely get a corresponding pay increase, according to an analysis by UC Berkeley's Labor Center. A boost in pay could help these workers get closer to liveable wages, but it's also considered a key piece in improving retention and attracting new hires for the industry as health facilities across the state face critical staffing shortages. The statewide minimum wage for all workers increases to $16 an hour on Jan. 1.

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Give raises to fast food workers

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By Jeanne Kuang

WHAT THE BILL WOULD DO

AB 1228 is a deal struck between labor groups and the fast food industry to raise the minimum wage for workers to $20 an hour next April. It would also require the state in 2024 to convene a new fast food council to set labor standards across the sector, including on wages, safety and other workplace conditions. Local governments would be barred from requiring an even higher fast food minimum wage. The council, which would operate for five years, would consist of fast food workers, their advocates, restaurant owners, fast food corporations and a member of the public. The state's labor and business departments would sit in but cannot vote.

All this is contingent on the restaurant industry nixing a November 2024 referendum it qualified to repeal the new council. Assemblymember Chris Holden, a Pasadena Democrat, carried the bill, as well as the 2022 law targeted by the referendum. The deal is only possible because of a brand-new law that allows referendum proponents to withdraw a measure.

WHO SUPPORTS IT

The Service Employees International Union and its Fight for $15 campaign for low-wage workers have been the primary proponents of higher wages and of the council. The International Franchise Association, the California Restaurant Association and a group of industry giants such as McDonalds, In-N-Out and Chipotle were campaigning against it and pouring millions of dollars into the ballot measure to repeal the council, but now say they support the agreement with labor.

WHO IS OPPOSED

Two groups representing the interests of individual franchise owners, the National Federation of Independent Business and the American Association of Franchisees and Dealers, are opposed, arguing the smaller business owners who would be responsible for paying the higher wages were left out of the negotiations for the deal.

WHY IT MATTERS

The deal represents a detente in a two-year battle between labor groups and corporations in an industry that employs more than 500,000 Californians who often earn low wages. It averts what would have been a costly ballot measure campaign on the issue next year.

Labor has for years struggled to unionize the fast food industry because of widespread franchise ownership and high employee turnover, and the establishment of the fast food council represents some bargaining power for workers. AB 1228 would give some workers a definite raise next year (though last December, the average hourly wage for California's fast food workers was already more than $19). It also gives business owners some stability by temporarily shielding them from potential additional regulations not outlined in the fast food council's purview.

In exchange, labor groups have temporarily agreed to call off a proposal to hold fast food chains legally responsible for the labor conditions in their franchisees' restaurants. Business groups large and small had opposed such a change, calling it an existential threat to the franchise model — which is one that has allowed many small and minority business owners to advance. Still, some franchise owners are upset that the deal locks them into higher wages and more workplace regulations that would come from the council; without the deal, whether the council exists at all would have been up to the voters next November.

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Ban toxic chemicals in food

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By Shreya Agrawal

WHAT THE BILL WOULD DO

This proposal captured headlines as the "Skittles bill" because it would have banned the use of titanium dioxide, which is used as a white dye in the popular fruit-flavored candies. AB 418, authored by Assemblymember Jesse Gabriel, a Woodland Hills Democrat, has been amended to remove that particular food chemical from the measure, so it no longer applies to Skittles. It would still prohibit the use of several other chemicals that are common in foods such as candies, baked goods and carbonated drinks: brominated vegetable oil, potassium bromate, propylparaben, and red dye 3.

Under the bill, all food products for human consumption that contain these substances will be banned starting Jan. 1, 2027. Any person who manufactures, stores, distributes, delivers, or sells any food products with these substances could be fined as much as $5,000 for the first offense and up to $10,000 for every subsequent offense.

WHO SUPPORTS IT

The bill was co-sponsored by the Environmental Working Group and Consumer Reports, who aim to improve food safety in California. Several health advocacy groups and environmental organizations also support this bill, including many cancer advocacy groups, since two of the banned substances are found to be carcinogenic. In a last-ditch push for a food safety bill, former Gov. Arnold Schwarzenegger and actor Morgan Freeman are among celebrities in an ad campaign.

WHO IS OPPOSED

The American Chemistry Council opposed earlier versions of the bill that included titanium dioxide, calling the ban "an overly broad and unnecessary burden on consumers, manufacturers and regulators." With the amendments, it changed its position to neutral, as did the California Chamber of Commerce and the Dairy Institute of California.

WHY IT MATTERS

The chemicals this first-in-the-nation bill would ban are present in several popular food brands and have already been banned from food in the European Union, because they have been shown to be detrimental to human health by several scientific studies. Potassium bromate and red dye 3 are carcinogenic while the others have been shown to cause harm to the endocrine, reproductive and nervous systems.

Due to concerns about cancer, red dye 3 was banned from cosmetics by the Food and Drug Administration, but it is still used in food.

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Revise concealed-carry laws

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By Nigel Duara

WHAT THE BILL WOULD DO

SB 2 would maintain some of California's concealed-carry weapons laws despite a U.S. Supreme Court ruling that struck down a similar New York law last year. Most states either issue concealed carry licenses upon request or do not require licenses at all. But in eight states before the ruling, including California, applicants were required to show a compelling need before being granted permission to carry a concealed firearm. The number of people applying for concealed carry permits in liberal coastal counties has sharply increased since the Supreme Court decision.

The bill would comply with the ruling by no longer requiring a compelling need. It sets limits on who can possess a firearm and where they can carry it. The legislation, even before it was signed by the governor, was immediately challenged by gun rights groups in court. To prepare for the possibility that some parts of it will be overturned, its authors included a "severability clause," meaning that if one or more elements of the bill are found unconstitutional in court, the rest of the bill will survive.

WHO SUPPORTS IT

Along with Gov. Newsom and Attorney General Rob Bonta, gun control groups, unions and the leadership of some major Democratic cities. Sen. Anthony Portantino, a Glendale Democrat, authored the bill. He introduced a similar bill in 2022, but it failed by one vote.

WHO IS OPPOSED

Law enforcement associations, police unions, gun owner groups and the National Rifle Association, which argued that "the circumstance of a (person with a concealed carry permit) committing a crime is exceedingly rare."

WHY IT MATTERS

Democrats in gun control states were sent reeling by the 2022 U.S. Supreme Court decision. The bill's proposed limits on guns in "sensitive places," such as courts and daycares, and the bill's designation of "disqualified persons" who cannot own a gun, are the likeliest to face court challenges.

The bill's supporters argue that the Supreme Court decision didn't do away with their ability to create gun control legislation — in fact, they argue, it was a "roadmap" to creating new gun control laws. The bill's opponents worry that the legislation would create a patchwork of places across the state where gun owners cannot carry concealed weapons.

The result, according to the California State Sheriffs' Association's letter of opposition, would be an "unnecessarily complicated, burdensome and overreaching licensing scheme that invites judicial scrutiny and seems destined to be struck down."

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Strengthen abortion access

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By Kristen Hwang

WHAT THE BILLS WOULD DO

Two bills from Senate President Pro Tem Toni Atkins seek to close remaining gaps in California's abortion protection and access network.

The first, SB 385, would allow trained physician assistants to conduct surgical abortions without direct supervision by a physician. It also would expand training options for physician assistants who want to learn how to perform abortions.

The second measure, SB 487, would prohibit health insurers and the state from penalizing medical providers who have been sanctioned in other states for performing abortions, gender-affirming care or procedures that are otherwise legal in California. Current law requires the state to automatically suspend Medi-Cal providers that have lost their license in other states or federal jurisdictions. The proposed law would not prevent the state from taking action in instances where providers lost their out-of-state license due to conduct that is illegal in California.

WHO SUPPORTS THEM

Both measures are supported by the California Women's Caucus, which has helped spearhead dozens of abortion protection measures since the U.S. Supreme Court overturned Roe v. Wade last year. They are also supported by Planned Parenthood Affiliates of California and the Future of Abortion Council.

Attorney General Rob Bonta and the California chapter of the American College of Obstetricians and Gynecologists support the physician assistant measure.

WHO IS OPPOSED

The Right to Life League opposes both measures, while the California Catholic Conference opposes the loosening of physician assistant regulations. Notably, the Physician Assistant Board of California opposed SB 385 because it increases training requirements for physician assistants and interferes with scope of practice agreements between physician assistants and supervising doctors.

WHY IT MATTERS

Atkins, a Democrat from San Diego, has been a proponent of abortion rights for many years and a leading figure in California's drive to become an abortion "safe haven". A 2013 law made it possible for physician assistants to perform abortions, but few providers pursued it due to limited training options and burdensome regulations. SB 385 seeks to remove those barriers.

California lawmakers also are watching how other states are cracking down on abortion and health care for transgender people. They seek to protect doctors who are penalized for providing services in other states that are considered legal in California.

GOVERNOR'S CALL

Newsom signed SB 385 into law on Sept. 8 without comment. SB 487 was sent to Newsom on Sept. 11.

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Increase penalties for child trafficking

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By Nigel Duara

WHAT THE BILL WOULD DO

SB 14 would reclassify human trafficking of a minor for purposes of a commercial sex act as a "serious felony," which would be treated as a strike under California's three strikes law. Current law allows for a sentence of as long as 12 years in prison for human trafficking of a minor for purposes of commercial sex. If the crime involves force, fear, fraud, deceit, coercion, violence, duress, menace, or threat of unlawful injury to the victim or to another person, the sentence is 15 years to life. If the person is convicted of inflicting great bodily harm on the victim while trafficking them, a judge can add as much as 10 years.

Under the bill, people convicted of the crime would face longer prison terms and potential life sentences.

WHO SUPPORTS IT

Police and prosecutors, representatives from conservative California cities and several crime victims' groups, who argue that the nation's largest state also has its biggest child trafficking problem — at least as measured by the number of cases reported to the National Human Trafficking Hotline. After the bill failed to pass out of the Assembly public safety committee, Gov. Newsom and Assembly Speaker Robert Rivas stepped in, and within 48 hours, it was given another look and passed.

WHO IS OPPOSED

Civil rights groups, some public defenders' offices and progressive criminal justice organizations, who argue that the penalties are already severe enough for child trafficking crimes and that criminal justice research shows that harsher sentences do not deter crime. Opponents also have contended that the more severe penalties may end up being applied to people at the lowest rungs of trafficking, who may be trafficked themselves.

WHY IT MATTERS

Similar human trafficking bills failed in 2007, twice in 2009, 2011, 2013, 2017 and three times in 2021. The proposal found new life this year, helped along by a storm of social media activism.

The debate over the bill became contentious: At one point, Assemblymember Heath Flora, a Ripon Republican, told colleagues: "You can choose a team, pick pedophiles or children." A Democratic Assemblymember said she received death threats over her initial committee vote to abstain from voting on the bill, virtually blocking it.

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Increase stipend to diversify juries

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WHAT THE BILL WOULD DO

AB 881 would expand a test of higher jury service payments — started in San Francisco in 2022 under another bill by Assemblymember Phil Ting, a San Francisco Democrat — to four more counties. By increasing the daily stipend from $15 to $100, the goal is to diversify juries in criminal trials. To qualify, a juror's household income must be less than 80% of their area's median income and they cannot be compensated by their employer, or must be self-employed or unemployed.

Under current law in the 57 other counties, employers are required to let workers serve on juries but are not required to pay them. Low-wage employees are excused from juries due to financial hardship, and many of them are people of color. The bill initially specified Alameda, Kern, Los Angeles and Monterey as the new test counties. The final version lets the state Judicial Council select the four counties to try the program until Jan. 1, 2027.

WHO SUPPORTS IT

San Francisco District Attorney Brooke Jenkins and the San Francisco public defender's office, which says that criminal trials are less fair without diverse juries and that some defendants accept plea bargains rather than risk a jury trial. "This is not justice," the office says in an argument submitted to the Legislature. "On the contrary, these plea deals often lead to incarceration, devastating families and historically criminalized communities."

WHO IS OPPOSED

While the bill didn't have official opposition, it does come with a cost of $4 million to $9 million a year, though the Judicial Council will be allowed to accept private or other money.

WHY IT MATTERS

This bill is another part of criminal justice reform: The U.S. Constitution guarantees criminal defendants the right to be judged by a jury of their peers. But that doesn't always happen in practice, particularly for the poor and people of color. The Be The Jury program helped San Francisco courts get closer to that ideal. In its first year, 495 people participated, in 9% of criminal trials: 84% said they could not have served without the higher stipend, 60% identified as a person of color and they reported a median household income of $38,000 a year, far below the citywide average of nearly $122,000.

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Let legislative staff unionize

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By Sameea Kamal

WHAT THE BILL WOULD DO

AB 1 allows legislative staff to form a union, but not until 2026. Currently, state employees other than the staff of Assemblymembers and state senators can do so, but at least five efforts to extend that right have failed.

The version that passed includes dozens of amendments to address concerns that have come up over the years, such as preserving lawmakers' discretion over hiring and firing. It doesn't address what happens if a future union decides to go on strike during the legislative session. The actual union will be organized by staff.

WHO SUPPORTS IT

Unsurprisingly, lots of other unions, including the State Building & Construction Trades Council of California, Service Employees International Union and the California Teachers Association. Other backers include advocacy groups such as California Environmental Voters, the Lawyers' Committee for Civil Rights of the San Francisco Bay Area and political action committee Fund Her. Besides bill author Assemblymember Tina McKinnor of Inglewood, there are more than 40 co-authors on the bill, in both the Senate and Assembly, including the current and immediate past speakers.

WHO IS OPPOSED

Not all lawmakers are on board. Some, including Democratic Sen. Steve Glazer of Orinda and Republican Sen. Brian Dahle of Redding, are concerned that a union could restrict the Legislature's ability to carry out what constituents want.

WHY IT MATTERS

The 1,800 full-time legislative staffers sometimes work long hours, but don't receive overtime pay. Until recently, there have been few options for reporting workplace issues, such as sexual misconduct. And the Legislature has struggled to retain longtime employees or attract new talent.

Part of why the bill has taken so long is that the Legislature's operations are unique from other state employees. Specifics of what might change under a unionized staff would be worked out in contract negotiations.

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Limit hand vote counts in elections

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WHAT THE BILL WOULD DO

AB 969 would ban hand-counting of votes, except in very narrow circumstances — in regular elections with 1,000 registered voters or fewer eligible to vote, and special elections with 5,000 voters or fewer. Other than those small elections, the bill requires election officials to use certified voting machines and prohibits them from ending a contract for such systems without having a replacement lined up. And the measure requires that any hand count plan must be approved by the secretary of state.

The bill is in response to the new conservative majority on the Shasta County Board of Supervisors voting in January to end the county's contract with Dominion Voting Systems, the target of election conspiracy theories from the 2020 presidential election. In March, the Shasta board voted to count votes by hand, starting with an election on Nov. 7. The measure would take effect immediately, so would apply to that election. Shasta County has voting machines — acquired for disabled voters — available.

WHO SUPPORTS IT

The Shasta County clerk, for starters. She agrees with Democratic Assemblymember Gail Pellerin, the bill's author and a former Santa Cruz election official, who argues that hand counts are imprecise, as well as costly. The League of Women Voters of California also objected to the Shasta board's actions.

WHO IS OPPOSED

Shasta supervisors' Chairperson Patrick Henry Jones told the Associated Press that the county will sue to stop the bill if it's signed. He argues that election officials cannot guarantee that voting machines aren't manipulated. "The state is now attempting to block us from being able to have a free and fair election without any outside influence," he told the AP. Most legislative Republicans voted against the bill.

WHY IT MATTERS

As Shasta County shows, deep-blue California hasn't been completely immune from election conspiracy theories fed by the Donald Trump-MAGA "Stop the Steal" movement. They surfaced in the 2021 gubernatorial election and again in the 2022 election. That isn't by accident: The Los Angeles Times reported in July that Douglas Frank, the "Johnny Appleseed" of election fraud, has been concentrating on California.

State and local election officials and Democrats are concerned. They're pushing back, and this bill is part of that effort.

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Ease college transfers, for some

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By Mikhail Zinshteyn

WHAT THE BILL WOULD DO

Much less than what students wanted. AB 1291 by Assemblymember Kevin McCarty, a Democrat from Sacramento, would move California closer to a higher-education holy grail: Guaranteeing community college students admission into the University of California or the California State University system by earning the same type of associate degree.

This measure doesn't go that far. It instead focuses on the UC's most selective campus — UCLA — to identify several majors that are aligned with the Associate Degree for Transfer that already leads to guaranteed admission to the Cal State system (but not necessarily to a student's campus of choice). The pilot program won't result in guaranteed admission for transferring students, but would give them priority admissions by 2026-27 if they attend yet-to-be determined community colleges. Eventually five more UC campuses will identify similar degrees that are aligned with the associate degree for transfer by 2028-29.

WHO SUPPORTS IT

Other than lawmakers, no one. McCarty calls the bill a "game changer for higher education access and for expanding enrollment through the community college transfer process." In an interview, however, he acknowledged the bill isn't perfect and contains necessary compromises.

WHO IS OPPOSED

Officially, the systemwide student organizations representing the UC and community colleges. They're incensed that McCarty didn't confer with them about the bill — even after they supported a more robust version of this bill that did guarantee admissions to the UC. A Senate committee killed it Sept. 1. The two student groups are asking Gov. Newsom to veto this bill, in large part because it doesn't achieve the goal of having one guaranteed admissions pathway for both the UC and Cal State. Whether he'll listen is unclear: His office helped negotiate the bill's passage in the Legislature and end UC's opposition.

The California Community College system's chancellor's office isn't taking a position on the bill, but its head of government relations told CalMatters the system is "concerned" that McCarty didn't include the chancellor's office or students in the bill-writing process.

WHY IT MATTERS

Transferring into a UC or CSU is complicated, in large part because the two systems have varying admissions requirements for community college students, including different minimum GPAs and courses. The associate degree for transfer solved one half of that so-called transfer maze by guaranteeing students admission to Cal State as juniors, which would mean the students could earn a bachelor's in two years after completing their community college studies.

So far, there's no system-wide guaranteed admissions pathway into the UC for transfer students. While this bill still won't create that sought-after guarantee, it at least tells the UC to begin viewing the associate degree for transfer as a preferred admissions roadmap for community college students.

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Make involuntary treatment easier

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By Jocelyn Wiener

WHAT THE BILL WOULD DO

SB 43 expands the legal definition of "gravely disabled" to make it easier to place someone into involuntary treatment. The existing law was enshrined in the Lanterman-Petris-Short Act of 1967 and is intended to preserve the rights and freedoms of those with mental illness. It defines grave disability as meaning a person, as a result of a mental health disorder, is unable to provide for their own food, clothing and shelter or is mentally incompetent.

Under SB 43, the expanded definition of grave disability would also consider whether a person faces a substantial risk of serious harm, by failing to provide for their own medical care or personal safety. It would include not just mental illness, but also severe substance use disorder and chronic alcoholism.

WHO SUPPORTS IT

The bill is supported by the Big City Mayors coalition, which includes mayors from the state's 13 biggest cities; the California chapter of the National Alliance on Mental Illness, which represents family members of people with serious mental illnesses; and psychiatric associations. It was authored by Sen. Susan Talamantes Eggman, a Stockton Democrat.

WHO IS OPPOSED

The bill is opposed by civil rights groups, including Disability Rights California, Human Rights Watch and the ACLU, among others. It is also opposed by the California Behavioral Health Planning Council, a state advisory body.

WHY IT MATTERS

The debate about expanding access to involuntary treatment by redefining "grave disability" has been raging in California for years. This is one of a series of bills that have attempted to modify the law in recent years. All of the previous attempts failed in the face of serious opposition from civil rights groups, among others. A 2020 state audit of the Lanterman-Petris-Short Act determined that the law itself wasn't broken; rather, the system to provide housing and services is.

CARE Court, the governor's signature mental health legislation from last year, is an attempt to sidestep that debate. The initial cohort of counties will be rolling out their CARE Courts in October.

The governor has focused his efforts this year on revising the 20-year-old Mental Health Services Act, seeking to funnel more money into treatment and housing for people with serious mental illnesses and substance use disorders.

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